



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Statute on the Participation of Official Delegations in Meetings

Council of Ministers Resolution No. 42
October 17, 2016

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Statute are provided in the Appendix.

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Statute on the Participation of Official Delegations in Meetings

Article 1: Definitions

In this Statute, the following words and phrases shall have the meanings assigned thereto:

Delegation: The official delegation of two or more government agencies representing the Kingdom in meetings.

Meetings: Meetings, conferences, seminars, or forums and the like which are held abroad and in which the Kingdom is represented by a delegation.

Competent Authority: A government agency under whose primary jurisdiction falls the subject matter of the meeting in question.

Participating Agency: A government agency invited to participate in a delegation without having a primary jurisdiction on the subject matter of the invitation.

Mission: The Kingdom's embassy, permanent delegation, general consulate, or commercial office.

Article 2: Processing Invitations

Official correspondence with host states or parties organizing meetings with regard to the participation therein shall be made through the Ministry of Foreign Affairs, even if the invitation is extended directly to the competent authority. However, specialized meetings in which the Kingdom participates periodically shall be excluded from such provision, provided that the Ministry of Foreign Affairs is furnished with a copy of the correspondence related to the dates of such meetings. Invitations extended by the host state or the organizing body to participate in meetings shall be processed pursuant to the following rules:

1. The Ministry of Foreign Affairs shall receive the invitations and forward them to the competent authority according to the subject matter thereof, with adequate time prior to the specified participation date. If the Ministry of Foreign Affairs has certain remarks, of political nature, towards the invitation, it shall attach such remarks to the invitation upon forwarding it to the competent authority. If the competent authority receives a direct invitation, it shall notify the Ministry of Foreign Affairs of such invitation and provide it with a copy thereof.
2. The competent authority shall review the invitation and its senior official shall assess the relevance of the Kingdom's participation based on the subject matter of the meeting and the importance of participation, provided that submissions to the Supreme Authority for permission to participate in meetings shall be limited to the following:
 - a) Meetings that involve discussion of sensitive topics, require taking political or international positions, entail financial obligations on the Kingdom, are held in countries where the nature of the relations necessitates prior approval, or in which the head of the authority participates.
 - b) For specialized meetings in which the Kingdom participates periodically. In such meetings, the Supreme Authority's approval of the first participation shall suffice, provided that the periodic nature of the participation is indicated upon submission to the Supreme Authority.



3. When the competent authority wishes to participate, the following shall be taken into consideration:
 - a) Participation shall be according to its available resources.
 - b) The Ministry of Foreign Affairs shall be informed of such participation.
 - c) Take into account the views of relevant government agencies or work on involving them from the start, when necessary, in order to coordinate and unify positions.
4. The competent authority shall notify the participating agencies to name their representatives for the delegation and provide the required information about them in accordance with Article 4 of the Statute.
5. The Ministry of Foreign Affairs shall provide the competent authority with the mission's contact information in the host state.

Article 3: Formation of the Delegation

When forming a delegation, the following shall be taken into consideration:

1. Alignment with other participating delegations in terms of representation level and number of members. This shall be carried out , in coordination with the Ministry of Foreign Affairs.
2. The representation level of the participating agencies shall be at an equivalent administrative level with the representation of the competent authority and the head of the delegation.
3. Include consultants, experts, and specialists as required by the delegation's mission and the subject matter of the meeting.
4. Include all or most of the former participants in the specialized internal committees or in previous external meetings, if the subject matters therein remain the same.
5. The Ministry of Foreign Affairs may, at its discretion, join the delegation.
6. The head and members of the delegation shall be qualified and have expertise and knowledge in all aspects of the subject matter pertaining to the entity they represent, and the head shall be proficient in one of the languages of the meeting.
7. The delegation shall have a secretariat from the competent authority to undertake the following:
 - a) Facilitate the delegation's mission and coordinate between the delegation and the organizing party.
 - b) Prepare a daily report on the progress of the meeting and the participation of the delegation, and inform the delegation members of the same.
 - c) Any other task assigned thereto by the head of the delegation or his designee.



Article 4: Authorization Document for Participation and Notification to the Organizing Entity of the Delegation's Participation

1. The competent authority shall, after the formation of the delegation pursuant to Article 3 herein and at least two weeks before the commencement of participation, submit to the Ministry of Foreign Affairs the names of the participants, as they appear in their passports, their positions or ranks and the date and time of their estimated arrival. The Ministry of Foreign Affairs shall prepare the authorization document, if necessary, taking into account the head of the delegation and the hierarchical positions of members from various participating agencies.
2. The Ministry of Foreign Affairs shall undertake sending the authorization document to the mission for completion of the necessary procedures. If the Kingdom does not have a mission in the hosting country, the authorization document shall be carried by the delegation and delivered directly to the relevant agency. To expedite the procedure, a copy of the authorization document may be sent to the organizing entity by express means of communication through the Ministry of Foreign Affairs.

Article 5: Preparation of the Delegation

The competent authority participating agencies, and other relevant parties shall thoroughly prepare, coordinate, and cooperate to ensure the success of the delegation's mission and to present a distinguished representation of the Kingdom's official participation and its delegations. This shall specifically include the following:

1. The competent authority shall hold a coordination meeting in the Kingdom between the competent authority and the participating agencies with adequate time prior to the specified participation date. The meeting shall be attended by the head of the delegation, or his designee, and all delegation members. If it is infeasible to hold the meeting in the Kingdom, the meeting shall be held abroad as soon as possible. The meeting shall aim at achieving the following:
 - a) Reviewing the meeting agenda.
 - b) Stating the objective of the delegation's participation, and the best means to achieve it.
 - c) Determining the position that must be adopted during the delegation's participation.
 - d) Assigning roles to the delegation members as per their respective specialties.
 - e) Specifying the duties of the delegation secretariat.
2. The delegation secretariat shall prepare a file containing documents and information relating to the subject matter of the meeting and provide a copy thereof to the delegation members.
3. The competent authority shall arrange the delegation's travel dates and notify the Ministry of Foreign Affairs in order for the Ministry to inform the Kingdom's mission in the hosting state.
4. The mission shall provide the necessary facilitations for the delegation.

Article 6: Head of the Delegation

The delegation shall be headed by the competent authority, and the minister or the head of the independent agency shall be the head of such delegation in serious and urgent matters which require him to be present. He must designate whomever deemed fit unless a specific level of leadership is required. The head of the delegation must have a deputy, appointed by the minister or the head of the independent agency, to act on his behalf when absent .



Article 7: Duties of the Head and Members of the Delegation

The head and members of the delegation shall observe the following:

1. Committing to and defending the official position of the Kingdom regarding the subject matter of the meeting, and representing the Kingdom rather than himself or the official agency that assigned him.
2. Maintaining confidentiality of information.
3. Unless they have a specific authorization to do otherwise, the delegation shall express reservations regarding any matter which may entail any financial or moral obligation on the Kingdom or any of its institutions, and presenting a report thereon along with their views for necessary action.
4. Refraining from making statements to the media that are outside the scope of the official position of the Kingdom or the nature of the delegation mission. Such statements shall be made only by the head of the delegation or his designee.
5. Cooperating among themselves, coordinating on their respective roles, and attending official coordination meetings.
6. Adhering to Islamic principles and ethics in all official and personal conducts, including observance of the regulations and customs of the host country, and abiding by the rules of diplomacy.
7. Residing in suitable accommodations and maintaining a professional appearance befitting the Kingdom's status.
8. Adhering to the national official clothing, unless otherwise necessary.

Article 8: Powers of the Head of the Delegation

The head of the delegation shall oversee the delegation's work and manage its affairs to achieve the objective for which it was formed. He may, in particular, exercise the following powers:

1. Presenting the Kingdom's view.
2. Coordinating in meetings, if necessary, with the delegations of participating countries, particularly GCC, Arab, and Islamic countries, to seek a unified position on the issues under discussion.
3. Communicating with the heads of participating delegations, and briefing the delegation members on the results.
4. Forming one or more sub-committees from delegation members to review specific matters relating to the issues in question.
5. Monitoring the performance of the delegation members and bringing to their attention any instances of absence, negligence, or misconduct; and, when necessary, removing or barring such member from participating in all or some of the delegation's activities. He may, when necessary, draft minutes to this effect, have it signed by the delegation members, and submit it to the agency of the excluded member.
6. Crafting the press release, he deems suitable, either during or at the end of the delegation's participation.
7. Preparing a final report upon the end of the participation, detailing all activities, opinions, and discussions. The report shall include an analysis of these matters based on the perspectives of the delegation members and shall provide recommendations accordingly.



Article 9: Delegation Participation

The delegation shall participate in meetings, side meetings, and sub-committees in a manner that ensures the national interest and the presentation of the Kingdom's views on the proposed topics. To this end, the delegation shall, in particular, undertake the following:

1. Delegation members shall convene a daily meeting, or additional meetings as necessary, for the purpose of consultation and briefing all members on the discussions held in committee meetings and various events, as well as evaluating the outcomes achieved.
2. Communicating on a continuous basis with the mission in the hosting country until the end of the delegation participation; seeking help from the mission to facilitate coordination meetings, if the delegation deems it necessary; and communicating with relevant authorities in the Kingdom to take instructions on any issue that may arise during participation.

Article 10: Delegation Participation Outcomes

1. The competent authority shall submit the report mentioned in Article 8(7) to the Supreme Authority, and shall provide a copy to all relevant agencies, whether participating in the delegation or not.
2. Each relevant agency shall submit to the Supreme Authority matters within its jurisdiction that require directions or the completion of legal procedures, and shall provide a copy to the competent authority.

Article 11: General Provisions

1. Delegations of ministerial council meetings and other formed committees within the framework of the League of Arab States, delegations of ministerial committees and committees of the GCC, and delegations of joint committees formed by international cooperation agreements may not be subject to the provisions of this Statute.
2. The provisions of this Statute may not apply to highly classified meetings of the military and security authorities, as per the discretion of the head of such authority.
3. Representatives of the private sector and representatives of the public sector who are not staff members and who participate in delegations shall be subject to the provisions of this Statute.
4. The provisions of this Statute shall apply to meetings held inside the Kingdom to the extent they are consistent with the nature of such meetings and without prejudice to the controls approved pursuant to the Council of Ministers Resolution No. 81, dated 22/03/1431H.
5. If a government agency receives an invitation to participate in a meeting while lacking the primary or any jurisdiction to attend such meeting, it shall forward the invitation to the Ministry of Foreign Affairs for referral to the competent authority.
6. The competent authority, in coordination with the Ministry of Foreign Affairs, shall endeavor to mobilize and unify efforts with the aim of electing the Kingdom to chair specialized executive offices or organizations, if this serves the interests and objectives of the Kingdom.



7. If certain circumstances prevent the participation of the designated delegation in meetings scheduled by international or regional bodies in which the Kingdom is a member, and the competent authority believes that the Kingdom's participation therein to be important, the authority heading the delegation may coordinate with the Ministry of Foreign Affairs to authorize the mission in the host state to represent the Kingdom, after providing the mission with the topics that the competent authority wishes to raise for discussion as well as the Kingdom's positions regarding the issues subject for discussion or those expected to be raised.
8. Each competent authority participating in meetings abroad shall defray the costs of their representatives' participation.

Article 12

This Statute shall replace the Statute on the Participation of Joint Official Delegations in Meetings, Conferences, and International Forums approved pursuant to the Council of Ministers Resolution No. 248, dated 30/07/1428H.



Appendix

Amendments

April 5, 2022 (Ramadan 4, 1443H)

Council of Ministers Resolution No. 507 provides for the following:

- Amending subparagraph (a) of paragraph (2) of Article 2 to read as follows:

"Meetings that involve discussion of sensitive topics, require taking political or international positions, entail financial obligations on the Kingdom, are held in countries where the nature of the relations necessitates prior approval, or in which the head of the authority which reports directly to the King or the Prime Minister participates. If, however, the authority does not report directly to either the King or the Prime Minister, the permission for the head to participate shall be taken from the entity to which the authority reports directly or its supervising agency or the chairman of the board or the like if the hierarchical structure of the authority or its supervisor is not specified".